

1 ENGROSSED HOUSE
2 BILL NO. 3322

By: Osburn of the House

3 and

4 Howard of the Senate
5
6

7 An Act relating to statutes and reports; amending 75
8 O.S. 2021, Section 11a, which relates to statutory
9 interpretation; providing for construction of certain
10 amendatory enactments; stating legislative intent;
11 creating presumption; defining term; and providing an
12 effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 75 O.S. 2021, Section 11a, is
15 amended to read as follows:

16 Section 11a. In the construction of the statutes of this state,
17 the following rules shall be observed:

18 1. For any act enacted on or after July 1, 1989, unless there
19 is a provision in the act that the act or any portion thereof or the
20 application of the act shall not be severable, the provisions of
21 every act or application of the act shall be severable. If any
22 provision or application of the act is found to be unconstitutional
23 and void, the remaining provisions or applications of the act shall
24 remain valid, unless the court finds:

- 1 a. the valid provisions or application of the act are so
2 essentially and inseparably connected with, and so
3 dependent upon, the void provisions that the court
4 cannot presume the Legislature would have enacted the
5 remaining valid provisions without the void one~~+~~ or
6 b. the remaining valid provisions or applications of the
7 act, standing alone, are incomplete and are incapable
8 of being executed in accordance with the legislative
9 intent~~+~~ ;

10 2. For acts enacted prior to July 1, 1989, whether or not such
11 acts were enacted with an express provision for severability, it is
12 the intent of the Oklahoma Legislature that the act or any portion
13 of the act or application of the act shall be severable unless:

- 14 a. the construction of the provisions or application of
15 the act would be inconsistent with the manifest intent
16 of the Legislature~~+~~
17 b. the court finds the valid provisions of the act are so
18 essentially and inseparably connected with and so
19 dependent upon the void provisions that the court
20 cannot presume the Legislature would have enacted the
21 remaining valid provisions without the void one~~+~~ or
22 c. the court finds the remaining valid provisions
23 standing alone, are incomplete and are incapable of
24

1 being executed in accordance with the legislative
2 intent;

3 3. When acts amend the same statute or statutes, whether in the
4 same or different sessions of the Legislature, creating multiple
5 versions of the same statute or statutes, it is the intent of the
6 Oklahoma Legislature that:

- 7 a. when possible, the acts are to be construed together
8 to determine the intent of the Legislature,
9 reconciling provisions, rendering them consistent and
10 giving intelligent effect to each act,
11 b. repeal by implication is disfavored,
12 c. language in amendatory measures that is neither
13 underlined nor stricken through is not intended to
14 change the statute but is only reproduced to provide
15 context and placement to the amendatory language,
16 d. acts which do not purport by citation to amend the
17 other version or versions of the same statute are
18 presumed to be reconcilable and not to conflict or
19 contravene one another, and
20 e. if the same section of law has been amended in two or
21 more measures and as a result of the enactment of
22 those measures the official statutes of the State of
23 Oklahoma contain two or more versions of the same
24 section of law, if it is possible to determine the

exact date and time as of which each measure was
enacted as law, there shall be a presumption that the
measure enacted latest in time contains the
Legislature's intent if there is a conflict between or
among the versions which cannot be avoided by
construing both or all versions of the statute
together. As used in this subparagraph, "enacted as
law" shall mean the date, hour, and minute the measure
was signed by the Governor.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate